

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001811

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MARCEL JAMES SHADD

and

RESPONDENT: DIAMOND HARDMOND

NATURE OF PROCEEDINGS: REQUEST FOR ORDER –VISITATION

RULING

This matter is before the Court on Petitioner/Father's November 25, 2025 Request for Order (RFO) to modify visitation regarding the parties' daughter, Milano (DOB:09/04/2023). Father seeks to modify the terms of the Findings and Order After hearing entered on August 19, 2025. The parties were re-referred to Family Court Services (FCS) at the hearing on January 8, 2026. Respondent/Mother's counsel noted that a Domestic Violence Restraining Order (DVRO) in San Joaquin County was issued on December 26, 2025, naming Father as a restrained person and Mother as the protected person. At the DVRO hearing on May 6, 2026, the Court informed the parties that the transfer of the matter from San Joaquin to Marin County was complete, and the Court terminated the December 26, 2025 DVRO, made orders regarding exchanges of Milano, referred the parties to FCS, and continued Father's November 25, 2026 RFO to July 2, 2026.

Both parents were interviewed by FCS and a report was filed on June 22, 2026. Recommendations were made regarding visitation as well as a recommendation to transfer venue to San Joaquin County.

On June 26, 2026, Mother filed a statement of agreement/disagreement to the FCS recommendations stating that she agrees with the FCS recommendations.

On June 26, 2026, Father filed a statement of agreement/disagreement to the FCS recommendations. Father agrees with recommendations #7 and #8, and with the 6:00 p.m. video-call time. Father disagrees with the location exchanges. Father requests that if the matter is being transferred, that it be transferred to Alameda County where he lives, and the courthouse is more accessible to both parties. Father also requests additional time for summer and vacation in a step-up format, make-up calls for missed, unanswered or calls that are ended early, clarification for holiday schedule, and orders around Mother moving without notice to Father.

Father states that he does not have a verified current address for Mother and Milano. For this reason, it is unclear whether the matter should be transferred to Alameda County (or returned to San Joaquin County). Mother is ordered to provide her current address to Father and to the Court.

Father requests clarification of his three-hour visits on the “off weekends”. There is currently no visitation for Father on those weekends, Father’s visits occur from Friday to Sunday on alternate weekends. The Court clarifies and orders that Father has the 1st, 3rd and 5th (if there are 5) weekends of the month, with the weekend defined as beginning on the Friday.

The Court has reviewed the submissions of the parties as well as the FCS report. The Court finds good cause and that it is in the best interest of the child, Milano, to adopt the recommendations of FCS as modified as follows:

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. Venue for this matter shall be transferred to San Joaquin County subject to confirmation that this is the county of primary residence of Milano. All future custody and visitation RFOs shall be filed in San Joaquin County.
2. Parents shall file a copy of the Marin County Family Court orders issued following the 7/2/26 hearing with the San Joaquin County Family Court.
3. No changes to the timeshare. Milano shall continue to be in Father’s custody on alternate weekends from Friday 4 PM through Sunday 6 PM. Father has the 1st, 3rd and 5th (if there are 5) weekends of the month, with the weekend defined as beginning on the Friday. Milano shall be in Mother’s custody at all other times when not in Father’s custody.
4. Exchanges shall continue to be at the Tracy Police Department until further court order.
5. Video calls for the noncustodial parent shall occur at 6 PM. Father’s calls shall be four times a week (on Monday, Tuesday, Wednesday, and Thursday each week). Mother’s calls shall be on the Saturdays of Father’s alternating weekends in which he has custody. Similarly, Father’s calls shall be on the Saturdays of Mother’s alternating weekends in which she has custody. Milano shall be made available for calls with the other parent.
6. Holidays: Unless otherwise agreed to between the parents, the following holiday schedule shall apply.

Father’s Day/Mother’s Day: shall be with the parent being honored.

Halloween: in odd numbered years, if Halloween falls on a weekday, the noncustodial parent may have a visit from 3 PM to 7 PM.

Thanksgiving: shall be defined as from 7 PM the day before (Wednesday) through Sunday 6 PM. Even years with Father, odd years with Mother.

Christmas: shall be defined as from 7 PM on 12/24 through 5 PM on 12/27. Even years with Mother, odd years with Father.

July 4: even years with Mother, odd years with Father.

Milano's birthday: The noncustodial parent may have a brief visit (two hours) with Milano on her birthday if they wish to do so. This visit shall not include the other parent unless otherwise mutually agreed upon.

Parents may modify the holiday schedule at any time per mutual parental agreement.

7. Parents shall continue to communicate all coparenting matters through Our Family Wizard. All coparenting communications shall be child focused.

8. Mother shall post on Our Family Wizard the information needed for Father to access Milano's medical and other relevant records.

Counsel for Mother to prepare the Findings and Order After hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002079

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ANTONY GRAEME
SCOTT

and

RESPONDENT: ING-CHUAN SHEN

NATURE OF PROCEEDINGS: 1) REQUEST FOR ORDER –CHILD/SPOUSAL SUPPORT
2) ORDER – SHOW CAUSE – FAILURE TO FILE
3) CASE PROGRESS CONFERENCE

RULING

This matter is set for hearing on Petitioner/Father's May 18, 2026, Request for Order (RFO) for (1) guideline child support regarding the parties' shared daughter, Melody (DOB: 12/26/2010), (2) pendente lite spousal support, and (3) a contribution of \$15,000 for Father's attorney's fees and costs. Father further asks that support be ordered retroactive to February 1, 2026, the date when the parties attempted to resolve this matter out-of-court. Father states that Mother refused to agree to preserve retroactivity, requiring Father to file his RFO even though he was unrepresented. With regard to Father's request for attorney's fees, Father's RFO does not provide information regarding his attorney's billing rate, expertise, or why the fees and costs are necessary and reasonable. Following the filing of this RFO, on June 23, 2026, Father retained counsel.

Respondent/Mother filed a Responsive Declaration June 18, 2026. First, Mother agrees to guideline temporary spousal support, with an imputation of minimum wage income to Father, and orders from this Court that Father seek full-time employment as well as a Gavron order. Second, Mother seeks guideline child support to be paid by Father to Mother as Mother has effectively 100% custody of Melody. Third, Mother agrees to a contribution for attorney's fees of \$15,000. Mother requests retroactivity be limited to the date of filing.

Father's May 18, 2026, Income and Expense Declaration reports zero W2 income and \$1,164 in self-employment income. Father asserts that he is paying \$5,383 per month for their daughter to attend boarding school in Japan. Father last filed taxes in 2024, jointly with Mother, and their 2024 tax return shows Adjusted Gross Income of \$127,274 ($\div 12 =$ \$10,606 a month). Father states that he was not working, and graduated from his Masters Program in 2024, implying that the 2024 income was all earned by Mother.